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CASE #	CASE NAME	HEARING NAME
CVRI2404672	NEWBERRY vs RISHABH INVESTMENT, LLC	DEMURRER AND MOTION TO STRIKE COMPLAINT

Tentative Ruling:

Moving party: Defendant Fine Hospitality Group, LLC

Responding party: Plaintiff Dextaur Newberry

Plaintiff Dextaur Newberry alleges that on 10/20/23, he rented a hotel room 340 at Best Western Moreno Hotel and Suites, in Moreno Valley, that was infested with bed bugs. He contends that Defendants had actual and constructive notice of bed bugs based on online reviews demonstrating bed bug infestations. The complaint, filed 8/20/24, against Defendant Rishabh Investment, LLC asserts: (1) negligence – premises liability/failure to warn/negligence per se; (2) nuisance; (3) intentional infliction of emotional distress; (4) breach of contract; and (5) fraudulent concealment. On 3/13/26, Plaintiff filed a doe amendment naming Fine Hospitality Group, LLC as a defendant.

Defendant, Fine Hospitality Group, demurs to each cause of action on the grounds that they fail to state facts sufficient. For negligence, Defendant contends that the complaint is untimely since Plaintiff did not name Defendant until after the two-year statute of limitations and does not allege duty. It argues that the nuisance claim is barred because there is no property interest to bring a private cause of action or alleges facts for a public nuisance, and is duplicative of negligence. For intentional infliction of emotional distress, there is no extreme and outrageous conduct, and insufficient allegations of emotional distress. For breach of contract, it argues that there are insufficient allegations of the terms of the contract or breach. For fraud, it asserts it is not pled with particularity. Defendant also moves to strike punitive damages on the grounds that fraud, malice or oppression are not pled. It moves to strike attorney fees on the basis that there are no statutory or contractual basis for attorney fees.

In an untimely opposition, Plaintiff argues that the negligence claim relates back to the original complaint. Plaintiff argues that duty is alleged by Defendant's ownership, operation and management and by California Code of Regulations, Title 25, section 40, with breach alleged by allowing the infestation to flourish after notice. For nuisance, Plaintiff argues that private nuisance is pled by the interference of Plaintiff's paid use and enjoyment of the room. For public nuisance, he argues actual physical injury and that other guests were exposed. For intentional infliction of emotional distress, he repeats the allegations that Defendants were aware of the bed bug infestations and knowingly failed to eradicate them. For breach of contract, he repeats the allegations of the complaint. For fraud, he argues less specificity is required to be pled. Alternatively, he requests leave to amend.

For the motion to strike, he argues fraud and public nuisance support punitive damages, and that attorney fees are authorized under Code of Civil Procedure section 1021.5.

Defendant objects to the untimely opposition and requests the court not consider it; in the alternative, it requests the court continue the hearing to allow it to file a proper reply.

Analysis

A. Meet & Confer

Code of Civil Procedure sections 430.41 and 435.5 requires a meet and confer process via **phone, videoconferencing, or in person** before filing a demurrer or motion to strike. The meet and confer process requires the moving party to identify the causes of action or allegations subject to attack and the plaintiff must provide legal support for its position. (*Id.* at §§ 430.41(a)(1), 435.5(a)(1).) The demurring party must file a declaration stating the means by which the parties met and conferred, or the responding party failed to respond or meet and confer in good faith. (*Id.* at §§ 430.41(a)(3), 435.5(a)(3).) Defendant did not comply. Defendant sent a meet and confer letter and email. (Islam Decl. ¶¶3-4.) **The court will continue the hearing to allow a proper meet and confer, and to allow Defendant to address the opposition by filing a reply brief on the merits.**

B. Demurrer

A demurrer tests the legal sufficiency of the pleading, but not the truthfulness of the allegations. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (*Id.*)

1. Negligence

Code of Civil Procedure section 474 provides in pertinent part: “When the plaintiff is ignorant of the name of a defendant, he must state that fact in the complaint, or the affidavit if the action is commenced by affidavit, and such defendant may be designated in any pleading or proceeding by any name, and when his true name is discovered, the pleading or proceeding must be amended accordingly.” If a new defendant is added as a fictitious Doe defendant after the statute of limitations has expired, the Doe Amendment is deemed filed as of the date the original complaint was filed. (*Woo v. Superior Court* (1999) 75 Cal.App.4th 169, 176.) “Code of Civil Procedure section 474 permits a plaintiff to amend complaints by adding parties as Doe defendants ‘when the plaintiff is ignorant of the name of a defendant’ at the time the complaint is filed.” **The purpose of section 474 is to enable a plaintiff to avoid the bar of the statute of limitations when he is ignorant of the identity of the defendant.** [Citation.] The cases discussing section 474 deal with whether the plaintiff was truly ignorant of the identity of the person brought into the case as a Doe defendant because if that

requirement is met, the amendment to the complaint relates back to the date the complaint was filed and the statute of limitations is preserved. [Citations.]” (*Davis v. Marin* (2000) 80 Cal.App.4th 380, 386-387 (emphasis added).)

Defendant does not show that on the face of the complaint, Plaintiff was aware of Defendant’s identity. **Accordingly, this argument fails.**

“In order to state a cause of action for negligence, the complaint must allege facts sufficient to show a legal duty on the part of the defendant to use due care, a breach of such legal duty, and the breach as the proximate or legal cause of the resulting injury.” (*Bellah v. Greenson* (1978) 81 Cal.App.3d 614, 619.) “Ordinarily, negligence may be alleged in general terms, without specific facts showing how the injury occurred, but there are ‘limits to the generality with which a plaintiff is permitted to state his cause of action, and ... the plaintiff must indicate the acts or omissions which are said to have been negligently performed. He may not recover upon the bare statement that the defendant’s negligence has caused him injury.’” (*Berkley v. Dowds* (2007) 152 Cal.App.4th 518, 527.)

Here, Plaintiff pleads that Defendant owed a duty of care to keep the hotel premises in a safe, healthy and habitable condition, Defendant breached the duty by allowing a bed bug infestation, and he was injured. (Complaint ¶¶52-55.) **That is sufficient for pleading purposes.** The rules of pleading require that only ultimate facts be alleged; evidentiary facts supporting the allegation of ultimate fact need not be pleaded. (*McKelly v. Washington Mut., Inc.* (2006) 142 Cal.App.4th 1457, 1469.) The distinction between “ultimate facts” and “conclusions” depends on whether the pleading gives adequate notice of the claims/defenses to be presented. (*Estate of Lind* (1989) 209 Cal.App.3d 1424, 1434.) **The court would overrule the demurrer.**

2. Nuisance

Plaintiff does not identify whether this is a private or public nuisance. The court addresses both theories.

a. Private Nuisance

A nuisance may be public, private or both. (*Adams v. MHC Colony Park L.P.* (2014) 224 Cal.App.4th 601, 610.) A private nuisance interferes with the use and enjoyment of plaintiff’s private property. (*Id.* at 610.) The elements are: (1) interference with plaintiff’s use and enjoyment of his property; (2) the invasion of the plaintiff’s interest must be substantial; and (3) the invasion is unreasonable, i.e. it must be of such a nature, duration or amount to constitute interference with the use and enjoyment of the land.

Plaintiff has not pled that he has a property interest. Accordingly, this theory fails.

b. Public Nuisance

The public nuisance doctrine was created to address and protect community interests. (*Citizens for Order Nuisance Abatement v. City of San Diego* (2017) 8 Cal.App.5th 350, 358.) A nuisance is “[a]nything which is injurious to health, including, but not limited to, the illegal sale of controlled substances, or is indecent or offensive to the senses, or an obstruction to the free use of property, so as to interfere with the comfortable enjoyment of life or property, or unlawfully obstructs the free passage or use” of waterways, highways, streets, or public parks or squares. (Civil Code § 3479.) A public nuisance is one which affects at the same time an entire community or neighborhood, or any considerable number of persons, although the extent of the annoyance or damage inflicted upon individuals may be unequal.” (Civil Code § 3480.)

“A public nuisance cause of action is established by proof that a defendant knowingly created or assisted in the creation of a substantial and unreasonable interference with a public right.” (*People v. ConAgra Grocery Products Co.* (2017) 17 Cal.App.5th 51, 79.) In order to state a cause of action for public nuisance, a plaintiff must allege:

1. The defendant, by acting or failing to act, created a condition that was harmful to health;
2. The condition affected a substantial number of people at the same time;
3. An ordinary person would be reasonably annoyed or disturbed by the condition;
4. The seriousness of the harm outweighs the social utility of the defendant’s conduct;
5. Plaintiff did not consent to defendant’s conduct;
6. Plaintiff suffered harm that was different from the type of harm suffered by the general public; and
7. Defendant’s conduct was a substantial factor in causing plaintiff’s harm.

(See CACI 2020; Civ. Code §§ 3479, 3480, 3493; *Birke v. Oakwood Worldwide* (2009) 169 Cal.App.4th 1540, 1547-48; *Citizens for Odor Nuisance Abatement v. City of San Diego* (2017) 8 Cal.App.5th 350, 359.)

Plaintiff merely concludes that this impacted the public at large. (Complaint ¶¶62-63.) There are no facts that this impacted a substantial number of people, or that his harm was different from the type of harm suffered by the general public. **The court would sustain the demurrer.**

3. Intentional Infliction of Emotional Distress

The elements of intentional infliction of emotional distress are: (1) extreme and outrageous conduct by the defendant with the intention of causing or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff’s suffering severe or extreme emotional distress; and (3) actual and proximate causation. (*Christensen v. Superior Court* (1991) 54 Cal.3d 868, 903.) Conduct must be “so extreme as to exceed all bounds of that usually tolerated in a civilized society.” (*Huntingdon Life Sciences,*

Inc. v. Stop Huntingdon Animal Cruelty USA, Inc. (2005) 129 Cal.App.4th 1228, 1259.) “Only emotional distress of ‘such substantial quantity or enduring quality’ that an individual in civilized society should not be expected to endure it constitutes severe emotional distress.” (*Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227.) Facts regarding the nature, extent or duration of the alleged emotional distress should be pled in the complaint to support severe emotional distress. (*Ibid.*)

Here, Plaintiff fails to allege facts demonstrating that Defendants knew about the bed bugs or intentionally chose Plaintiff to suffer the bed bug infestation. All Plaintiff pleads is online reviews demonstrating bed bug infestations—that does not demonstrate that Defendants were aware of the infestation. “The requirement that the defendant’s conduct be directed primarily at the plaintiff is a factor which distinguishes intentional infliction of emotion distress from the negligent infliction of such injury.” (*Christensen, supra*, 54 Cal.3d at 903-906; *Potter, supra*, 6 Cal.4th at 100-02.) “It is not enough that the conduct be intentional and outrageous. It must be conduct directed at the plaintiff, or occur in the presence of a plaintiff of whom the defendant is aware.” (*Christensen, supra*, 54 Cal.3d at 903.) **The court would sustain the demurrer.**

4. Breach of Contract

The elements of a breach of contract claim include a contract, plaintiff’s performance of the contract or excuse for non-performance, the defendant’s breach, and the resulting damage to the plaintiff. (*Richman v. Hartley* (2014) 224 Cal.App.4th 1182, 1186.) A contract may be pled according to its legal intentment. (*Construction Protective Services, Inc. v. TIG Specialty Ins. Co.* (2002) 29 Cal.4th 189, 198-199.)

Plaintiff alleges that he attaches the contract, but Exhibit A is merely a reservation confirmation. He does not identify the terms. At best, he treats this as an implied covenant of good faith and fair dealing. (Complaint ¶¶91.) Without the terms, the **court would sustain the demurrer.**

5. Fraud

Concealment requires: “(1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under a duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage.” (*Marketing West, Inc. v. Sanyo Fisher (USA) Corp.* (1992) 6 Cal.App.4th 603, 612-613.) As concealment is a species of fraud, it must also be pled with specificity. (*Blickman Turkus, LP v. MF Downtown Sunnyvale, LLC* (2008) 162 Cal.App.4th 858, 878.) Less specificity is required where the defendant necessarily possesses the information. (*Committee On Children’s Television, Inc. v. General Foods Corp.* (1983) 35 Cal.3d 197, 216.) Furthermore, as noted by one court, it is not practical to allege facts showing how, when and by what means something did not happen. (*Alfaro v. Community Housing Improvement System Planning Assn.* (2009) 171 Cal.App.4th 1356, 1384.) However, if the concealment is based on providing false or

incomplete statements, the pleading must at least set forth the substance of the statements at issue. (*Ibid.*)

As explained in *Bigler-Engler v. Breg, Inc.* (2017) 7 Cal.App.5th 276, 311: “There are ‘four circumstances in which nondisclosure or concealment may constitute actionable fraud: (1) when the defendant is in a fiduciary relationship with the plaintiff; (2) when the defendant had exclusive knowledge of material facts not known to the plaintiff; (3) when the defendant actively conceals a material fact from the plaintiff; and (4) when the defendant makes partial representations but also suppresses some material facts.’ ” The last three require an evidence of some transaction, i.e. direct dealings between the plaintiff and the defendant. (*Id.* at 311-312.) The direct dealing is the rental of the room.

Plaintiff fails to plead facts demonstrating a duty. By Plaintiff’s allegations, Defendant’s knowledge apparently is based on online reviews—but there is no allegation that Defendant was aware of these reviews. Furthermore, this was not exclusive knowledge since the online reviews were available to Plaintiff. Furthermore, it is not clear when Defendant was aware of these bed bug infestations. The claim is not sufficiently pled, and **the court would sustain the demurrer.**

C. Motion to Strike

A motion to strike may be applied to any irrelevant, false or improper matter, or any pleading not drawn or filed in conformity with the laws of the state, court rule, or court order. (Code Civ. Proc., § 436.) The grounds must appear on the face of the pleading or judicial notice. (*Id.* at § 437.)

1. Punitive Damages

In order to plead punitive damages, a plaintiff must plead allegations of fraud, malice, or oppression with sufficient particularity. (*Hilliard v. AH Robbins Co.* (1983) 148 Cal.App.3d 374, 392.) Generally, claims for punitive damages must be pleaded with particularity as to the facts constituting the alleged egregious conduct. (*G.D. Searle & Co. v. Superior Court* (1975) 49 Cal.App.3d 22, 29.) However, the court may read the complaint as a whole so that conclusory allegations may be sufficient when read in context with the facts alleged as to the defendant’s wrongful conduct. (*Perkins v. Superior Court* (1981) 117 Cal.App.3d 1, 6-7.)

Malice is currently defined in the statute as “conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (Civil Code §3294(c)(1).) Oppression is defined as “despicable conduct that subjects to a cruel and unjust hardship in conscious disregard of that person’s rights. (Civil Code §3294(c)(2).) Fraud is “an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.” (Civil Code § 3294(c)(3).)

Plaintiff has not pled fraud, malice or oppression—just negligence. The court would grant the motion to strike.

2. Attorney Fees

“With regard to an award of attorney fees in litigation, California generally follows what is commonly referred to as the ‘American Rule,’ which provides that each party to a lawsuit must ordinarily pay his or her own attorney fees. [Citation.] The American Rule is codified in Code of Civil Procedure section 1021, which states in relevant part: ‘Except as attorney’s fees are specifically provided for by statute, the measure and mode of compensation of attorneys and counselors at law is left to the agreement, express or implied, of the parties....’ ” (*Tract 19051 Homeowners Assn. v. Kemp* (2015) 60 Cal.4th 1135, 1142.)

Plaintiff has not pled a statutory or contractual basis for fees. Plaintiff argues in opposition that Code of Civil Procedure section 1021.5 applies, but he did not plead it. The court would grant the motion to strike.

The CMC, hearing on the demurrer, and motion to strike are **continued to 10/14/2028** at 8:30 a.m. in Department 6. Defendant is ordered to ***meet and confer in person, or via phone or videoconference*** with Plaintiff for the purpose of determining whether an agreement can be reached that would resolve the objections raised in the demurrer and motion to strike. As part of the meet and confer process, Defendant shall identify the specific causes of action that it believes are subject to demurrer and identify with legal support the basis of the deficiencies. Plaintiff shall provide legal support for their position that the pleading is legally sufficient or, in the alternative, how the complaint may be amended to cure any legal insufficiency.

The Court has provided its analysis of the issues above with the intent of aiding the parties in their meet and confer efforts. If the parties are able to resolve the issues or agree that Plaintiff may file an amended complaint, the parties can take the hearing on the Demurrer and Motion to Strike off calendar and appear for the CMC.

After meeting and conferring, Defendant shall 15 days before the continued hearing date set above do one of the following:

- (1) vacate the hearing on the demurrer, and file an Answer;
- (2) file with the court a declaration stating the parties have agreed that Plaintiff will file a stipulation and amended complaint before the date set forth above; or
- (3) file with the court a declaration stating the means by which the parties met and conferred and identifying the specific objections in the demurrer and supporting memorandum of points and authorities that the parties were unable to resolve. (Code Civ. Proc., §§ 430.41(a)(3), 435.5(a)(3).)

Defendant is permitted to file a reply on the substance, pursuant to code.